

25CMCV01944 25CMCV01944

County: los-angeles

Division: Civil Law and Motion

Department: A

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The court has reviewed the parties' filings in response to the Order to Show Cause re Dismissal.

With respect to the third cause of action for declaratory relief, plaintiff failed to file a motion for leave to file an amended complaint as required by the court's June 3, 2026 order and Code of Civil Procedure section 473. Plaintiff further failed to comply with Cal. Rules of Court, rule 3.1324, including but not limited to the requirement that a proposed amended pleading and a sworn declaration accompany any motion for leave to file an amended pleading as provided by that rule.

With respect to the first and second causes of action, the court concludes that plaintiff's Response to the Order to Show Cause re Dismissal constitutes an improper motion for reconsideration prohibited by Code of Civil Procedure section 1008. The court's June 3, 2026 order did not grant plaintiff permission to amend or to seek leave to amend the first or second cause of action. As stated in the conclusion, the demurrer to these causes of action was sustained without leave to amend. The court's reference in the body of the order to the demurrer to the first cause of action being sustained with leave to amend was inadvertent and in error, and will be corrected nunc pro tunc to conform to the final order set forth in the conclusion. Nonetheless, plaintiff's response brief makes clear he did not rely on any such error to his detriment because he acknowledges his understanding that the demurrer was sustained without leave to amend, and he failed to file an amended pleading which is consistent with the order denying leave to amend.

Plaintiff requests that the court overlook his procedural failures and instead rely on the policy that provides for liberality in the amendment of pleadings. However, that policy does not relieve plaintiff from his duty to comply with all governing statutes and court rules, which the court expressly brought to his attention and emphasized in bolded and italicized font in the June 3, 2026 order. Moreover, under California law, a self-represented (in propria persona, or "in propria persona") litigant must expect and receive the same treatment as if represented by an attorney — no different, no better, no worse. This rule is firmly established by the California Supreme Court in *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975 and traces back to the foundational Court of Appeal decision in *Taylor v. Bell* (1971) 21 Cal. App. 3d 1002. Except where a particular rule expressly provides otherwise, the rules of civil procedure apply equally to parties represented by counsel and those who forgo attorney representation. Judges are not required to act as counsel for self-represented parties, and mere self-representation is not a ground for exceptionally lenient treatment. To overlook plaintiff's repeated and unjustified procedural failures in this case would be to deprive defendants of fundamental fairness and due process protections.

Based on the foregoing, the court dismisses the action with prejudice, and shall enter judgment of dismissal in favor of defendants and against plaintiff. Defendants are ordered to give notice.